

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
September 14, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

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These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **September 14, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0007002 In re the Estate of Murphy, Mary Carmen

Petition to confirm sale of real property (124 Hap Arnold)

Appearance is required for hearing on petition to confirm sale of real property (124 Hap Arnold).

Missing notice of sale. Missing proof of publication of notice of sale. Prob.C. § 10300; see also Prob.C. § 10312. Notice of sale and notice of confirmation hearing are distinct notices and both are required.

Missing service of notice of confirmation hearing to PR of the estate of Eugene Murphy, the sole heir of this estate. Missing proof of posting of notice of confirmation hearing. Prob.C. § 10308(c).

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Petition to confirm sale of real property (148 Hap Arnold)

Appearance is required for hearing on petition to confirm sale of real property (148 Hap Arnold).

Missing notice of sale. Missing proof of publication of notice of sale. Prob.C. § 10300; see also Prob.C. § 10312. Notice of sale and notice of confirmation hearing are distinct notices and both are required.

Missing service of notice of confirmation hearing to PR of the estate of Eugene Murphy, the sole heir of this estate. Missing proof of posting of notice of confirmation hearing. Prob.C. § 10308(c).

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Clarification: administrator requests approval of commissions of nearly 11% of the sale price, without explanation for the unusually high request.

2. S-PR-0012296 In Re the Estate of Donald, Blane Edward

Administrator response is needed: administrator alleges distributions of the bulk of the estate to himself and to devisee Hunter Donald. No petition for preliminary distribution was ever filed or granted. Administrator had no authority to distribute either real property or cash to any devisee of the estate. It is recommended the court decline to approve all impermissible preliminary distributions.

Administrator response is needed: the estate was previously granted a judgment of \$25,000 against Sherry Donald. The judgment is not mentioned in the petition and it is unclear whether the judgment has been collected or remains an asset of the estate.

Attorney response is needed: the court has previously determined in adversarial proceedings that reasonable attorney fees for the estate litigation concerning title to the real property was \$25,000. Counsel should address any basis on which the court should not determine that reasonable extraordinary fees should be fixed at an amount greater than \$25,000.